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Case Number: 25STCP02729 Hearing Date: August 11, 2026 Dept: 731

[TENTATIVE] ORDER RE: APPLICATION

FOR ORDER FOR SALE OF DWELLING PURSUANT TO CCP §§ 704.740 – 704.780

Moving Party: Plaintiff, Rothstein Donatelli, LLP

Opposing Party: None

Notice: OK

Background Facts

This action, initiated July 12, 2025, involved an application for the entry of a New Mexico judgment, which the Court entered on July 17, 2025.

Now before the Court is Plaintiff

Rothstein Donatelli, LLP's unopposed, May 20, 2026, application for an order for the sale of a dwelling owned by Defendant Robert D. Haack.

Application for

Order for Sale of Dwelling (Code Civ. Proc., §§ 704.740 - 704.780)

a. Legal

Standard

"The interest of a natural person

in a dwelling may not be sold under this division to enforce a money judgment except pursuant to a court order for sale obtained under this article and the

dwelling exemption shall be determined under this article.” (Code Civ. Proc., § 704.740(b).) A “dwelling” is “a place where a person resides,” and a homestead is defined as “the principal dwelling (1) in which the judgment debtor ... resided on the date the judgment creditor’s lien attached to the dwelling, and (2) in which the judgment debtor ... resided continuously thereafter until the date of the court determination that the dwelling is a homestead.” (Code Civ. Proc., §§ 704.710(a) and (c).)

To enforce a money judgment against the real property that a debtor uses as his dwelling, the creditor must proceed with a seven-step process.

The first four steps requires that the judgment creditor (1) record an abstract of judgment with the county recorder’s office; (2) apply for and obtain a writ of execution from the clerk of the trial court directing the sheriff to enforce the judgment; (3) provide instructions and a notice of levy to the sheriff or other levying officer to execute the writ by levying upon the judgment; and (4) apply for a court order specifically authorizing the sheriff or other levying officer to sell the dwelling. (Meyer v. Sheh (2022) 74 Cal.App.5th 830, 837-838. (Meyer), citations omitted.)

Fifth, the trial court must determine whether the fair market value of the judgment debtor’s interest in the dwelling is likely to produce a bid sufficient to satisfy (1) the amount of the homestead exemption and (2) the amount of all liens and encumbrances senior to the judgment lien being executed. (Id. at pp. 839-840, citations omitted.)

Sixth, the court monitors the bidding. If there is no bid that “exceeds the amount of the homestead exemption plus any additional amount necessary to satisfy all liens and encumbrances on the property,” the sale will not go forward. (Code Civ. Proc., § 704.800, subd. (a).) And even if the bid does exceed that threshold amount, if the bid is less than 90 percent of the fair market value of the judgment debtor’s interest as determined at the time the application was signed, the judgment creditor must get the court’s permission to either accept that bid or hold a new sale. (Id. at subd. (b).)

Last, if the sales goes through,

the proceeds from the sale of the dwelling are distributed in the following order: (1) to the holders of all preexisting liens and encumbrances, (2) to the judgment debtor in the amount of the homestead exemption, (3) to the levying officer for any unpaid costs, (4) to the judgment creditor, and (5) to the judgment debtor if there is any money left over. (Meyer, supra, 74 Cal.App.5th at p. 839, citing Code Civ. Proc., § 704.850.)

Procedurally, the application must be made under oath, describe the dwelling, and state (1) whether or not the records of the county tax assessor indicate that there is a current homeowner's exemption or disabled veteran's exemption for the dwelling; (2) whether the dwelling is a homestead and the amount of the homestead exemption; and (3) whether the judgment is based on a consumer debt. (Meyer, supra, 74 Cal.App.5th at p. 838, citations omitted.)

The application must also specify the amount of any liens or encumbrances on the dwelling, the names of each person having a lien or encumbrance on the dwelling, and the address of persons used by the county recorder for the return of the instrument creating such person's lien or encumbrance after recording. (Ibid., citations omitted.)

"A homestead exemption does not preclude sale of the home but entitles the homesteader to receive the value of the exemption if the property is sold to satisfy a judgment lien." (Wells Fargo Financial Leasing, Inc. v. D&M Cabinets (2009) 177 Cal.App.4th 59, 68.) At the hearing, "the court shall order the sale of the dwelling, subject to the homestead exemption, unless the court determines that the sale of the dwelling would not be likely to produce a bid sufficient to satisfy any part of the amount due on the judgment pursuant to Section 704.800." (Id. at p. 69.) "[I]f the court determines that a bid for the judgment debtor's interest will likely exceed the homestead exemption plus all preexisting liens and encumbrances, such that there is some amount available to satisfy even a 'part' of the judgment creditor's lien, then the court must grant the application for sale." (Meyer, supra, 74 Cal. App.5th at pp. 838-839.)

Discussion

i. Procedural Requirements

Here, the Application meets all
statutory procedural requirements for relief. The Application:

(1) Is made under oath (Verified
Petition, ¶ 15);

(2) Describes the dwelling
(Verified Petition, ¶¶ 5 [legal description], 9 [ownership by Defendant], Ex. F
[title]);

(3) States whether or not the
records of the county tax assessor indicate that there is a current homeowner's
exemption or disabled veteran's exemption for the dwelling (Verified Petition,
¶ 7, Exs. D, E);

(4) States whether the dwelling is
a homestead and the amount of the homestead exemption (Verified Petition, ¶¶ 7,
8, Exs. D, E, F);

(5) States whether the judgment is
based on a consumer debt (Verified Petition, ¶ 14);

(6) Specifies the amount of any
liens or encumbrances on the dwelling (Verified Petition, ¶ 10 [none found],
Ex. F);

(7) Specifies the names of each
person having a lien or encumbrance on the dwelling (see Verified Petition, ¶
10); and

(8) Specifies the address of
persons used by the county recorder for the return of the instrument creating
such person's lien or encumbrance after recording (see Verified Petition, ¶ 10).

(See Meyer, *supra*, 74
Cal.App.5th at p. 838, citations omitted.)

ii. Steps
One to Four

Plaintiff has not demonstrated compliance with the first prerequisite identified in Meyer, namely, recordation of an abstract of judgment in the county where the dwelling is located (Meyer, supra, 74 Cal.App.5th at pp. 837-838.):

(1) Recordation of an abstract of judgment with the county recorder's office (see Verified Petition, ¶¶ 1-15 [no evidence or briefing related to such an abstract]);

(2) Application for and obtaining of a writ of execution from the clerk of the trial court directing the sheriff to enforce the judgment (Verified Petition, ¶¶ 3-4, Exs. B [writ of execution], C [recordation]);

(3) Provision of instructions and a notice of levy to the sheriff or other levying officer to execute the writ by levying upon the judgment (see Verified Petition, ¶¶ 3-4, Exs. B [writ of execution], C [recordation]); and

(4) Application for a court order specifically authorizing the sheriff or other levying officer to sell the dwelling (Verified Petition, ¶¶ 5-6).

(See Meyer, supra, 74 Cal.App.5th at pp. 837-838, citations omitted.)

iii. Step

Five – Determination re: Fair Market Value

Because Plaintiff has failed to establish compliance with the threshold statutory prerequisites for obtaining an order of sale, the Court does not reach the valuation issues addressed in Code of Civil Procedure section 704.780 and Meyer.

c. Conclusion

Plaintiff has failed to establish compliance with the statutory prerequisites for an order authorizing

the sale of Defendant's dwelling because the application contains no evidence that an abstract of judgment was recorded. Accordingly, the application DENIED WITHOUT PREJUDICE to renew upon a proper showing.

Plaintiff Rothstein Donatelli, LLP
is ordered to give notice and file proof of service.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.